

26PSCV00584 26PSCV00584

County: los-angeles

Division: Civil Law and Motion

Department: O

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Case Number: 26PSCV00584 Hearing Date: September 9, 2026 Dept: O

Tentative Ruling

Defendants'

Motion to Strike is GRANTED with 30 days leave to amend; the court requests Defendants file a proposed order.

Background

This is a dog

bite case that happened in March 2024 when the plaintiff was in a public place.

On February

18, 2026, Plaintiff Ismael Gomez filed suit against Defendants Ernesto Jimenez and Maria Jimenez for:

1. Strict

Liability

2. Negligence

On May 6,

2026, the instant motion to strike (MTS) was filed.

On July 17,

2026, an opposition was filed.

To date, as

of Thursday, September at 3 PM, no reply has been filed (due 5 court days

before the hearing (Tuesday, 9/1).

Discussion

Defendants

seek to strike references to punitive damages because the complaint lacks in specificity. The court agrees.

The

complaint alleges, in part, the following:

The subject dog suddenly and violently lunged at Plaintiff, jumping onto him and attempting to bite his neck and throat. In a desperate effort to protect himself from being mauled, Plaintiff raised his arm to shield his neck, at which point the dog clamped down and bit Plaintiff's left arm. As Plaintiff attempted to defend himself and create distance, he struck the dog in its midsection, causing him to momentarily fall. The dog immediately resumed its attack and bit Plaintiff on his left leg. Throughout the attack, Plaintiff reasonably believed he was about to be killed or suffer fatal injuries and experienced intense fear for his life. Additionally, upon information and belief, Defendant's dog had known dangerous propensities, including a history of aggressive behavior, prior attacks, or a tendency to bite without provocation. Defendant was aware or should have been aware of these dangerous tendencies yet failed to take adequate precautions to control or restrain the dog, further contributing to the preventability of this incident. (Complaint pp. 3-4.)

As

noted by Defendants, punitive damage allegations require factual specificity. To survive a motion to strike, a plaintiff must plead the specific facts showing entitlement to such relief. (Clauson v. Superior Court (1998) 67

Cal.App.4th

1253, 1255; *Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166; *Blegen v. Superior Court* (1981) 125 Cal.App.3d 959, 962-63.) The specific facts here would be delineating the history of aggressive behavior, prior attacks, or a tendency to bite without provocation (e.g., the number of times this dog under these owners had previously attacked people without provocation). Instead, Plaintiff alleges so "under information and belief." That is insufficient. (See e.g., *Carney v. Simmonds* (1957) 49

Cal.2d 84, 100; Doe v. City of Los Angeles (2007) 42 Cal.4th

531, 550 (“[A] pleading made on information and belief is insufficient if it ‘fails to allege specific facts upon which the belief is founded.’”).)[1]

To the extent an opposition has been filed, it merely reiterates the allegations above. To the extent that Plaintiff relies upon the allegation that “Defendants knowingly and with conscious disregard of the consequences, unleashed the large dog in a public place,” that is insufficient for malice. After all, malice refers to an evil motive. (See e.g., *Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 895 [“Under general definition, malice in fact denotes ill will on the part of the defendant, or his desire to do harm for the mere satisfaction of doing it. In ultimate analysis, malice in fact is malice of evil motive.”].) Accordingly, on this fact alone, there is no inference that people who have their dogs off leash carry an evil motive or conscious disregard of the probability that an injury will result. (See e.g., *Karlsson v. Ford Motor Co.* (2006) 140 Cal.App.4th 1202, 1230.) At most, on these facts, that may be negligence.

Conclusion

Based on the foregoing, the motion is granted WITH 30 DAYS leave to amend.

[1] And though the federal rules of civil procedure and CCP have different pleading standards, the guidance on such pleading is instructive here. (See e.g., *Kowal v. MCL Communications Corp.* (1994) 16 F.3d 1271, 1279 [“In general, pleadings on information and belief are permitted when ‘the necessary information lies within defendants’ control.’”] Nonetheless, standards for pleadings on information and belief must be construed consistent with the purposes of Rule 9(b), which attempts in part to “ ‘prevent[] the filing of a complaint as a pretext for the discovery of unknown wrongs.’ ”] We therefore affirm the district court’s determination that pleadings on information and belief require an allegation that the necessary information lies within the defendant’s control, and that such allegations must also be accompanied by a statement of the facts upon which the allegations are based.” (Id. at p. 1279, emphasis added, internal citations omitted.)